

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RAYSHAWN MARTINEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. KYLE
DIVIRGLIO, SHIELD # 20926, OF THE
MIDTOWN SOUTH PCT., INDIVIDUALLY
AND AS A POLICE OFFICER, POLICE
OFFICER ALEJANDRO ALVAREZ, SHIELD # 19326, OF
THE MIDTOWN SOUTH PCT., INDIVIDUALLY
AND AS A POLICE OFFICER, SGT. RONALD
REYNOLDS, SHIELD # 5496 OF THE MIDTOWN
SOUTH PCT., INDIVIDUALLY AND AS A
POLICE OFFICER, POLICE OFFICERS JOHN AND
JOE DOE, WHOSE IDENTITIES ARE PRESENTLY
UNKNOWN OF THE MIDTOWN SOUTH PCT.,
INDIVIDUALLY AND AS POLICE OFFICERS.

Defendants.
-----X**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 1st day of March, 2018

**SUMMONS WITH
VERIFIED
COMPLAINT**

Index No.:
Date Purchased:

Plaintiff designates
New York County as the
place of trial. The basis of
the venue is that New York
County is the County where
the cause of action arose.

EMDIN & RUSSELL, LLP
Royce Russell, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
100 Church Street
New York, New York 10007

Police Officer Kyle Divirglio, Shield # 20926
c/o Midtown Precinct South
357 W 35th St
New York, NY 10001

Police Officer Alejandro Alvarez, Shield # 19326
c/o Midtown Precinct South
357 W 35th St
New York, NY 10001

Sgt. Ronald Reynolds, Shield # 5496
c/o Midtown Precinct South
357 W 35th St
New York, NY 10001

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COUNTY OF NEW YORK

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VERIFIED COMPLAINT

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Defendants.
-----X

Plaintiff, Rayshawn Martinez, by his attorneys, Emdin & Russell, LLP complaining of
the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT/ NATURE OF CLAIMS

1) Plaintiff brings this action for compensatory damages, punitive damages and attorney's fee pursuant Article 1 Section 11 of the New York State Constitution for denial of Equal Protection and redress for tortuous conduct against Plaintiff by Defendants through Battery, False Arrest, False Imprisonment, Illegal Search and Seizure, Abuse of Power and Authority, Conspiracy and Prima Facie Tort.

2) Additionally, Plaintiff bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1981, 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States as well as State Law claims articulated herein.

3) Plaintiff seeks redress pursuant to 42 U.S.C. §1983 and 1988, et. seg, for violation of his rights secured by the First, Fourth, Sixth and Eight Amendments and Due Process clause of the Fourteenth Amendment of the United States Constitution.

JURISDICTION/ VENUE

4) Jurisdiction and Venue is appropriate given the incident arose in New York County within the State of New York.

JURY TRIAL DEMANDED

5) Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant State Law and Fed. R. Civ. P.38 (b). Plaintiff seeks both compensatory and punitive damages, affirmative and equitable relief an award of costs, interest, and attorney's fees and seek other further relief as this Court deems equitable and just.

PARTIES

6) Plaintiff, Rayshawn Martinez, an African American male, currently resides at 2284 Jaydee Ct., Far Rockaway, NY 11691 and at the time of this incident resided at the abovementioned location.

7) Defendant CITY OF NEW YORK was and is a Municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8) Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9) That at all times hereinafter mentioned, Police Officers Kyle Divirglio, Shield # 20926, Police Officer Alejandro Alvarez, Shield # 19326, Sgt. Ronald Reynolds, Shield # 5496 and John and Joe Doe, all were duly sworn Police Officers of the New York City Police Department and working out of the Midtown South Precinct., all acting under the supervision of said department and according to their official duties, prior to April 2, 2017 and/or on April 2, 2017 and thereafter.

10) That at all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statues, custom/ usages, patrol guidelines and/or practices of the State of New York and/or the City of New York, prior to April 2, 2017 and/or on April 2, 2017 and thereafter.

11) Each and all of the acts of the Defendants alleged herein were done by Defendants while acting within the scope of their employment by Defendant CITY OF NEW YORK.

FACTS

12) On or about April 2, 2017 at approximately 12:30 a.m. - 2:30 a.m., Plaintiff Rayshawn Martinez was lawfully driving when he observed police cars with police lights on as if they were signaling Plaintiff to stop.

13) Plaintiff was driving East on 36th Street towards "Suite 36" when the named Police Officers exit an unmarked car and pass by the Plaintiff walking towards "Suite 36".

14) Another police car stopped next to Plaintiff's car, whereupon the Officers Alvarez and/or Divirgilio (bald head officer), immediately started to curse out Plaintiff.

15) Officers Alvarez and Divirgilio then ordered Plaintiff to produce identification.

16) Plaintiff complied with the order whereupon one of the officers took Plaintiff's identification card and walked away towards "Suite 36".

17) The officers never went to their vehicles to verify Plaintiff's identification.

18) Plaintiff asked why he was being detained, upon information and belief, Alvarez, ordered Plaintiff to exit his vehicle.

19) Plaintiff inquired further, whereupon Defendant Alvarez attempted to remove Plaintiff from his vehicle by yanking Plaintiff's "dread locks."

20) Plaintiff was then sprayed with pepper spray for which said spray blew back into the face/eyes of the named Defendant who had the Plaintiff in his custody.

21) Plaintiff was dragged out of his car and slammed against his vehicle.

22) Plaintiff was handcuffed and thrown into a police vehicle.

23) Plaintiff with his face and eyes burning started to kick the police door.

24) Plaintiff was then taken out of said police vehicle and slammed to the ground with a knee in the back and his head forcibly held on the concrete.

25) Plaintiff was eventually escorted to Mt. Sinai Hospital for treatment whereupon Plaintiff was given Tylenol for his injuries.

26) Plaintiff was falsely detained, arrested, battered, assaulted and imprisoned for approximately 24 hours before he was presented before a Judge. Plaintiff was charged with Obstructing Governmental Administration.

27) Plaintiff never obstructed any police activity.

28) Plaintiff sought follow up treatment from Interfaith Medical Center.

29) Plaintiff's case is/was dismissed on October 26, 2017.

30) All the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate, screening, hiring, retaining, training and supervising of its' employees, deliberate indifference as to punishment for misconduct against Rayshawn Martinez.

31) As a result of the foregoing, Rayshawn Martinez, sustained the above mentioned injuries as well as, emotional distress, embarrassment, humiliation and deprivation of his Constitutional Rights.

AS AND FOR A FIRST CAUSE OF ACTION
PURSUANT TO NEW YORK CONSTITUTION
ART.I, 11

32) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "31" with the same force and effect as if fully set forth herein.

33) By the aforesaid acts, Defendants have violated Plaintiff's right to the equal protection laws under Article I, 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

34) The conduct and actions of the named Defendant Police Officers, and Defendant City of New York, acting under color of law, in falsely detaining, arresting, imprisoning, battering, assaulting and conspiring against Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under law and Constitution of the State of New York. The above described actions and omissions engaged in under color of state law by the named Police Officer Defendants, including Defendant City of New York, sued as a person within the meaning of Article I, 11 deprived the Plaintiff of rights, including but not limited to, their rights under Article I, 8, 9 guaranteeing freedom of expression and association, Article I, 12 guaranteeing protection against unlawful seizure of his person, Article I, 11 guaranteeing due process and equal protection under the law, and Article I, 15 guaranteeing protection from cruel and unusual punishment.

35) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING AND SUPERVISION

36) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "35" with the same force and effect as if fully set forth herein.

37) The above described injuries suffered by the Plaintiff is the proximate result of the negligence of the Defendant New York City Police Department, in that the Defendant City of New York and the New York Police Department failed to exercise reasonable care in the hiring, employment, supervision and training of its employees.

38) The Defendant City of New York and the New York City Police Department had, or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Police Officer Defendants.

39) Defendant City of New York, and the New York City Police Department knew or should have known of the unlawful actions of the named Police Officer Defendants, through actual and constructive notice, of their unlawful activities, including but not limited to those allegations as set forth in the preceeding paragraphs above. Defendants City of New York, and New York City Police Department failed to exercise reasonable care by retaining and not terminating the employment of the named Police Officer Defendants or taking other appropriate action. The occurrence complained of herein was due to the negligence and recklessness of the Defendant City of New York and the New York Police Department.

40) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A THIRD CAUSE OF ACTION
FALSE DETENTION/ FALSE IMPRISONMENT

41) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "40" with the same force and effect as if fully set forth herein.

42) By the aforesaid acts, Defendants unlawfully and unjustifiably detained Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting Plaintiff despite Plaintiff's innocence, and utilized its power and authority to illegal seize, search the Plaintiff as well as to cover-up their own wrongful conduct. The Defendants illegally seized Plaintiff's person detaining, arresting and imprisoning the Plaintiff by not allowing him to exercise his right to liberty when no probable

cause existed to detain the Plaintiff.

43) The Defendants tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully detained for approximately 24 hours and arrested.

44) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A FORTH CAUSE OF
ACTION FALSE ARREST**

45) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "44" with the same force and effect as if fully set forth herein.

46) By the aforesaid acts, Defendants unlawfully and unjustifiably arrested Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting Plaintiff despite Plaintiff's innocence, and utilized its power and authority to illegal seize, search the Plaintiff as well as to cover-up their own wrongful conduct. The Defendants illegally seized Plaintiff's person by handcuffing, arresting and imprisoning the Plaintiff by not allowing him to exercise his right to liberty when no probable cause existed to arrest the Plaintiff.

47) The Defendants tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully arrested.

48) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A FIFTH CAUSE OF ACTION
PRIMA FACIE TORT**

49) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "48" with the same force and effect as if fully set forth herein.

50) In falsely detaining, arresting, imprisoning, fabricating and conspiring against Plaintiff, Defendants acted with malicious intent, recklessness and negligence to injure and harm the

Plaintiff.

51) By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

52) For all claims under New York State Law, Defendants are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 5, 7 and 11 of the Civil Practice Law and Rules.

AS AND FOR A SIXTH CAUSE OF ACTION
ASSAULT AND BATTERY

53) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "52" with the same force and effect as if fully set forth herein.

54) By the aforesaid acts, Defendants have caused physical harm and injury upon the person(s) of the individual Plaintiff named in the complaint herein. Defendants acted willfully, unlawfully, maliciously, recklessly, unjustifiably, negligently, in the abuse of power and authority, excessive force used therein which resulted in the Plaintiff being seized, by the Defendants who illegally entering his property, punched Plaintiff in the face, threw Plaintiff to the ground with an elbow in his back as the Defendant's illegally searched the Plaintiff and forcibly placed him against the wall with a hand on his neck. As a result of the Defendant's actions Plaintiff suffered injuries to his eye, groin, head/face, body and limbs and suffers migraine headaches for which he was hospitalized and received prescriptions.

55) By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A SEVENTH CAUSE OF ACTION
CONSPIRACY AND FABRICATION OF EVIDENCE

56) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "55" with the same force and effect as if fully set forth herein.

57) The named Police Officer Defendants did knowingly and intentionally agree and/or otherwise conspire to provide false evidence against the Plaintiff to cover-up their wrongdoing of falsely detaining, arresting, imprisoning, battering, assaulting, searching and illegally seizing him Plaintiff by the aforementioned omissions.

58) The Defendants tortuous conduct caused the Plaintiff to suffer severe emotional distress and thus, the Plaintiff has been damaged as set forth above.

WHEREFORE, Plaintiff, Rayshawn Martinez respectfully requests judgment upon all causes of action against Defendants as follows:

1. With respect to Defendant The City of New York; and New York City Police Department
 - (a) Declaratory judgment declaring that Defendant City of New York and New York City Police Department has violated the aforesaid statues and constitutions.
 - (b) Restitution to Plaintiff of his rights, privileges, benefits and income which would have been received by him but for the Defendants unlawful, wrongful, tortuous, and unconstitutional conduct;
 - (c) Compensatory damages in an amount to be determined by the court and jury;
 - (d) Punitive damages in the amount to be determined by the court and jury
 - (e) All legal and statutory interest on sums awarded
 - (f) Such other and further relief as this honorable court may deem just, proper and equitable
2. With respect to each Police Officer Defendants;
 - (a) Declaratory judgment declaring that the Defendants have violated the aforesaid statues and constitutions;
 - (b) Restitution to Plaintiff of his rights, privileges, benefits and income which would

have been received by them but for Defendants' unlawful, wrongful, tortuous, and unconstitutional conduct.

(c) Compensatory damages in an amount to be determined by the court and jury;

(d) Punitive damages in an amount to be determined by the court and jury;

All legal and statutory interest on sums awarded.

FEDERAL CLAIMS

AS AND FOR A NINTH CAUSE OF ACTION

(Deprivation of Rights Under 42 U.S.C. §§1981 and 1983)

59) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "58" with the same force and effect as if fully set forth herein.

60) All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under the color of state law.

61) All of the aforementioned acts deprived Plaintiff, Rayshawn Martinez of his rights, privileges and immunities guaranteed to as a citizen of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§1981 and 1983.

62) The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of gender.

63) The Defendants herein battered, and assaulted the Plaintiff more specifically touched the Plaintiff's body without his consent.

64) Defendants battered, and assaulted Rayshawn Martinez, by spraying him with pepper spray, kicking him in the groin and kneeing him in the back while forcibly pushing his head into the concrete. As a result Plaintiff was hospitalized and sought follow-up treatment.

65) The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

66) Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

67) As a result of the foregoing, Plaintiff, Rayshawn Martinez is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individuals in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION

(False Detention/ False Arrest/ Unlawful Imprisonment under 42 U.S.C. § 1983)

68) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "67" with the same force and effect as if fully set forth herein.

69) Defendants did falsely detain the Plaintiff, Rayshawn Martinez, and falsely arrested the Plaintiff, Rayshawn Martinez without Probable Cause, causing him to be detained against his will for an extended period of time and subjected to physical restraint.

70) Defendants' false detention, arrest, and illegal search of Plaintiff, Rayshawn Martinez was without Probable Cause and said misconduct was malicious in nature.

71) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A ELEVENTH CAUSE OF ACTION

((Malicious Abuse of Process Authority under 42 U.S.C. § 1983))

72) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "71" with the same force and effect as if fully set forth herein.

73) Defendants issued criminal process against Plaintiff, Rayshawn Martinez, by detaining, and illegally searching the Plaintiff, as they acted under the color of law.

74) Defendants actions was an abuse of authority given they had no Probable Cause to detain, seize and/or search the Plaintiff, Rayshawn Martinez.

75) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELVETH CAUSE OF ACTION

(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

76) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "75" with the same force and effect as if fully set forth herein.

77) Plaintiff, Rayshawn Martinez, was falsely detained, arrested and physically restrained. During this physical restraint, Rayshawn Martinez, was seized forcibly thrown to the ground and against his residence wall, as well as searched, battered, assaulted, falsely detained, arrested and subjected to excessive force.

78) The physical restraint and public search as to the Plaintiff, Rayshawn Martinez, was based on his nationality as an African American male, age and gender, and the failure to intervene to prevent such treatment committed by the named Defendants were also based on the above mentioned.

79) The battery, assault and false detention/arrest committed on Rayshawn Martinez were based on him being a African American male, his age and gender. But for the aforementioned,

Rayshawn Martinez would not have been physically restrained or searched.

80) Moreover, the failure to intervene by other unknown officers present, as to said battery, assault and search was founded on above cited factors.

81) The Defendants' false detention and arrest of Rayshawn Martinez was based on his Nationality, Race, Gender, and Age as well as the named Defendants' failure to intervene as to this misconduct.

82) As a result of the foregoing, Plaintiff, Rayshawn Martinez, was deprived of his rights under the Equal Protection Clause of the United States Constitution.

83) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

84) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "83" with the same force and effect as if fully set forth herein.

85) The Defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

86) As a result of the foregoing, Plaintiff, Rayshawn Martinez, was deprived of his liberty and right to substantive due process, causing emotional injuries.

87) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION**(Failure to Intervene under 42 U.S.C. § 1983)**

88) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "87" with the same force and effect as if fully set forth herein.

89) Defendants have an affirmative duty to intervene on behalf of Plaintiff, Rayshawn Martinez whose constitutional rights were being violated in his presence by other officers.

90) The Defendants failed to intervene to prevent the unlawful conduct described herein.

91) As a result of the foregoing, Plaintiff, Rayshawn Martinez, liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to other physical restraints.

92) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTHTEENTH CAUSE OF ACTION**(Supervisory Liability under 42 U.S.C. § 1983)**

93) Plaintiff repeats, reinstates, and realleges each and every allegation contained in paragraphs "1" through "92" with the same force and effect as if fully set forth herein.

94) The supervisory defendants personally caused Plaintiff, Rayshawn Martinez constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train and/or discipline their subordinates employees.

95) Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff, Rayshawn Martinez constitutional rights.

96) All of the foregoing acts by Defendants deprived Plaintiff, Rayshawn Martinez of federally protected rights, including, but not limited to the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false detention, false arrest and unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process; and excessive force, battery and assault;
- F. To receive equal protection under law.

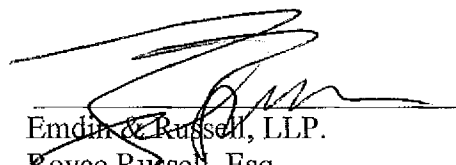
97) As a result of the foregoing, Plaintiff, Rayshawn Martinez, is entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff, Rayshawn Martinez demands judgment and pray for the following relief jointly and severally, against defendants as follows:

- 1. Full and fair compensatory damages in an amount to be determined by a jury
- 2. Punitive damages in an amount to be determine by a jury;
- 3. Reasonable attorney's fees and the costs and disbursements of this action; and
- 4. Such other and further relief as appears just and proper.

Plaintiff further asserts the following state law violations as a result of the defendants' misconduct:

Dated: New York, New York
March 7, 2018



Emdin & Russell, LLP.
Royce Russell, Esq.
Attorneys for Plaintiff
499 Seventh Avenue, 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

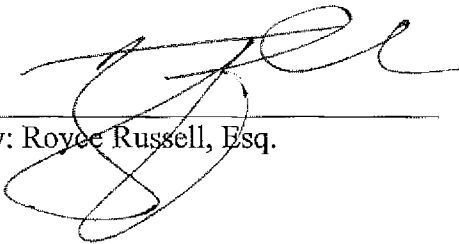
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 7, 2018

By: 
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

RAYSHAWN MARTINEZ

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. KYLE DIVIRGLIO, SHIELD # 20926, OF THE MIDTOWN SOUTH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER ALVAREZ, SHIELD # 19326, OF THE MIDTOWN SOUTH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, SGT. RONALD RYNOLDS, SHIELD # 5496 OF THE MIDTOWN SOUTH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICERS JOHN AND JOE DOE, WHOSE IDENTITIES ARE PRESENTLY UNKNOWN OF THE MIDTOWN SOUTH PCT., INDIVIDUALLY AND POLICE OFFICERS.

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To: City of New York
c/o Corporation Counsel,
100 Church Street
New York, New York 10007

Police Officer Kyle Divirglio, Shield # 20926
c/o Midtown Precinct South
357 W 35th St
New York, NY 10001

Police Officer Alejandro Alvarez, Shield # 19326
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Sgt. Ronald Reynolds, Shield # 5496
c/o Midtown Precinct South
357 W 35th St
New York, NY 10001

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 7, 2018

Signature

Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on